

3. 9:00 AM CASE NUMBER: C22-02054
CASE NAME: CHRISTOPHER WRIGHT VS. SWINERTON BUILDERS
*HEARING ON MOTION IN RE: MOTION FOR SUMMARY JUDGMENT
FILED BY:
TENTATIVE RULING:

Defendant Swinerton Builder's motion for summary judgment is denied.

Plaintiff Christopher Wright was an employee of a contractor during a multi-contractor jobsite in Atherton, California. Plaintiff fell at the egress site of the property and was injured. Plaintiff alleges that Defendant controlled the access to the jobsite and that Defendant created tripping hazards and safety problems. Defendant was not Plaintiff's employer. Plaintiff sued Defendant for negligence and premises liability.

Defendant filed this motion for summary judgment arguing that the *Privette* doctrine bars Plaintiff's claims against Defendant.

Privette Doctrine

Defendants argue that the *Privette* doctrine applies here and bars Plaintiff's claims against them. "When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely. [Citations.]" (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 269.) The *Privette* doctrine states that a hirer is ordinarily not liable to the contract workers for injuries. (*Id.* at 270.) There are, however, exceptions to this doctrine. Including that (1) "a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. (*Kinsman v. Unocal Corp.* (2005)] 37 Cal.4th [659,] 664.)" And that (2) "a hirer owes a duty to a contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker's injury. (*Hooker v. Department of Transportation* (2002)] 27 Cal.4th [198,] 202.)" (*Sandoval, supra*, 12 Cal.5th at 271.)

Once a moving defendant has provided the requisite factual foundation for the *Privette* presumption to apply, the burden shifts to the Plaintiff to raise of triable issue of fact. (*Alvarez v. Seaside Transportation Services LLC* (2017) 13 Cal.App.5th 635, 644; *Horne v. Ahern Rentals, Inc.* (2020) 50 Cal.App.5th 192, 201.) A defendant meets its burden by showing that the defendant hired plaintiff's employer to perform work at defendant's premises (or a general contractor hired a subcontractor to do work), and that plaintiff was injured while working on that site. (*Ibid.*)

Here, Defendant's undisputed facts show that Defendant entered into a contract with the property owner for the construction project and that Defendant acted as general contractor on the project. (Fact 18.) Plaintiff was an employee of Collins Electrical, a subcontractor working on the project. (Fact 22, 30.) Collins Electrical is an independent contractor. (Fact 23.) Plaintiff was injured on March 4, 2021, when he exited the building and fell. (Fact 33.) These facts are sufficient for Defendant to meet its initial burden showing that the *Privette* doctrine applies. The burden now shifts to Plaintiff to show that there is a triable issue of material fact as to one of the exceptions to *Privette*.

Privette Exception: Concealed Hazards

Kinsman held that "the hirer as landowner may be independently liable to the contractor's

employee, even if it does not retain control over the work, if: (1) it knows or reasonably should know of a concealed, preexisting hazardous condition on its premises; (2) the contractor does not know and could not reasonably ascertain the condition; and (3) the landowner fails to warn the contractor.” (*Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659, 675.)

Plaintiff argues that *Kinsman* applies here and focuses on the elements as stated in CACI 1009A. Plaintiff’s argument does not show that the hazard was concealed, which is a key component of the *Kinsman* rule and CACI 1009A. Nor does Plaintiff provide evidence that the hazard was concealed.

To the contrary, the evidence shows that the hazard was open and obvious. Plaintiff testified that on the day of his injury he exited the building. He then stepped over the rebar with his left foot and then put his right foot on the form. His right foot slipped, causing him to fall. (D’s ex. 35: Plaintiff depo 42:25-43:25.)

Both sides refer to a photograph, Swinerton 887, which shows the area where the accident occurred. This photograph is referred to as Exhibit 10 in several depositions, included as Exhibit 27 in the Defendant’s evidence and Exhibit 2 to Kyle’s declaration in Plaintiff’s evidence. The photograph shows the “ramp”, which was the path Plaintiff used to exit the building. It also shows a “plank”, however Plaintiff and Kyle both stated that the plank was not there on the day of the accident. (D’s ex. 35: Plaintiff depo. 45:21-46:1; Kyle dec. 9.)



Based upon the evidence, including the photographs provided by the parties, the Court finds that Plaintiff has not shown that there is a triable issue as to whether the hazard was concealed. Therefore, the *Kinsman* exception does not apply.

Privette Exception: Retained Control

“A hirer ‘retains control’ where it retains a sufficient degree of authority over the manner of

performance of the work entrusted to the contractor. ... So ‘retained control’ refers specifically to a hirer’s authority over work entrusted to the contractor, i.e., work the contractor has agreed to perform. For simplicity we will often call this the ‘contracted work’—irrespective of whether it’s set out in a written contract or arises from an informal agreement. A hirer’s authority over noncontract work—although potentially giving rise to other tort duties—thus does not give rise to a retained control duty unless it has the effect of creating authority over the contracted work. [Citation.] Furthermore, a hirer’s authority over the contracted work amounts to retained control only if the hirer’s exercise of that authority would sufficiently limit the contractor’s freedom to perform the contracted work in the contractor’s own manner.” (*Sandoval, supra*, 12 Cal.5th at 274-275; see also CACI 1009B.)

“To establish that the hirer owes a duty of care to the contractor’s employees, therefore, the plaintiff must establish both that the hirer retained control over the contracted work, and that the hirer actually exercised that retained control in a manner that affirmatively contributed to the contract worker’s injury. [Citation.] The court noted, however, that neither ‘actual exercise’ nor ‘affirmative contribution’ require that the hirer’s alleged negligence consist of an affirmative act. Instead, ‘[t]he hirer’s negligence may take the form of any act, course of conduct, or failure to take a reasonable precaution that is within the scope of its duty under *Hooker*. ... [¶] ... [¶] If a plaintiff proves that the hirer actually exercised retained control in a way that affirmatively contributed to the contract worker’s injury, the plaintiff establishes that the hirer owed the contract worker a duty of reasonable care as to that exercise of control.’ [Citation.]” (*Brown v. Beach House Design & Dev.* (2022) 85 Cal.App.5th 516, 528-529 [citing to *Sandoval, supra*, 12 Cal.5th at 277–278].)

Here there is evidence that Defendant provided access to and from the project for all subcontractors. Defendant would decide where the point of egress would be on any particular day. (P’s ex. 11: Nelson depo. 49:11-19; ex. 13: Lugo depo. 19:3-9, 27:24-28:24.) Defendant would advise the subcontractors of areas of ingress and egress during meetings, and when necessary place ramps for workers to use. (Kyle dec. 4.) The location where rebar would be stored on the jobsite is usually determined by the general contractor, in this case the Defendant (P’s ex. 7 Vasconi Depo. 25:16-26:23; ex. 16: Maldonado depo. 31:25-32:17.) The ramp that leads from the building towards the rebar was not placed there by Plaintiff’s employer. Instead, Kyle testified that the ramp was made of heavy steel or iron and he was only aware of Defendant having such equipment. (Kyle dec. 12.) Kyle’s statement provides a reasonable inference that the ramp was placed there by Defendant.

This evidence is sufficient to show that Defendant determine the methods of ingress and egress and told all subcontractors which route to use. The evidence shows that Defendant, as the general contractor, would have told the rebar company where to place the rebar. Finally, there is a reasonable inference that Defendant placed the ramp leading towards the rebar. The Court finds that there is a triable issue of material fact as to whether Defendant controlled Plaintiff’s method for entering and exiting the building and that it this control was a cause of Plaintiff’s injury.

Defendant argues that *Kinney v. CSB Constr., Inc.* (2001) 87 Cal.App.4th 28 applies here. In *Kinney* the court found that a general contractor who claims the power to control all safety procedures on the worksite is not liable to the injured employee of a subcontractor for failing to direct the subcontractor to take safety precautions *where there is no evidence that any conduct by the general contractor contributed affirmatively to the injuries.* (*Kinney, supra*, 87 Cal.App.4th at 30.) *Kinney’s* holding was limited to cases where there is no evidence that the general contractor affirmatively contributed to the injury. (*Id.* at 36.) Here, however, the Defendant controlled the location of ingress

and egress and it was this location where Plaintiff was injured. Thus, the evidence shows that there is a triable issue of material fact as to whether Defendant affirmatively contributed to Plaintiff's injury by telling Plaintiff where to walk in what was a potentially dangerous location.

Plaintiff has shown that there is a triable issue as to whether the retained control exception applies here and therefore, summary judgment is DENIED.

Objections to Evidence

The Court rules on Plaintiff's objections to evidence as follows:

1. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
2. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
3. Overruled. Plaintiff is correct Defendant's discovery responses cannot be used by the Defendant to prove a fact. Here, however, Plaintiff is objecting to the "fact" in the separate statement and admits that the fact is undisputed.
4. Overruled. Plaintiff objects to a fact in the separate statement that is based on two pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.
5. Overruled. Plaintiff objects to a fact in the separate statement that is based on several pieces of evidence, but the basis for the objection addresses only the discovery responses and not the master contract.

The Court rules on Defendant's objections to evidence as follows:

1. Overruled.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Sustained as to the following: "it would have to have been placed by laborers or carpenters who would either be employed by Swinerton or the concrete/rebar contractor. Otherwise overruled.
11. Overruled.
12. Overruled.
13. Overruled.
14. Overruled.

4. 9:00 AM CASE NUMBER: C23-02039
CASE NAME: OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY VS. RICKY HORTON